

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

**In the matter of an appeal in terms of
Section 331 of the Code of Criminal
Procedure Act No. 15 of 1979**

Democratic Socialist Republic of
Sri Lanka

Complainant

CA HCC 0116/2024

High Court of Nuwara Eliya
Case No. HCR 021/2017

Vs.

Faruq Mohomad Saali *alias* Bega *alias*
Salaldeen Mohomad Sali

Accused

AND NOW BETWEEN

Faruq Mohomad Saali *alias* Bega *alias*
Salaldeen Mohomad Sali

Accused-Appellant

Vs.

The Attorney General,
Attorney General's Department,
Colombo 12

Respondent

Before: **Amal Ranaraja, J.**
 Dr. Sumudu Premachandra, J.

Counsel: Kasun Sarathchandra, Assign Counsel for the Accused-Appellant.

Dileepa Pieris, ASG, for the State.

Argued on: 02.06.2026

Judgment on: 22.06.2026

Judgment

Amal Ranaraja, J.,

1. The accused-appellant (hereinafter referred to as the ‘appellant’) has been indicted in the High Court of Nuwara Eliya in Case No. HCR 21/17. The charge in the indictment is as follows;

01. That between the 01st of June, 2011 and 22nd of September, 2011, within the jurisdiction of this Court, in *Ambewela Cattle Farm*, you have committed rape on one *Devadasan Nirosha*, a minor under 16 years of age; thereby you have committed an offence punishable under Section 364(2)(e) of the Penal Code as amended by Penal Code (Amendment) Act No. 22 of 1995.

2. At the conclusion of the trial the appellant has been convicted of the charge and sentenced as follows;
 - i. Imposed a term of 10 years Rigorous Imprisonment and also fined Rs. 15,000.00 with a term of 3 months Simple Imprisonment, in default of the payment of the same.

- ii. The appellant has also been directed to pay a sum of Rs. 500,000.00 as compensation to PW01 with a term of 3 years Simple Imprisonment, in default of the payment of the same.
3. The appellant, aggrieved by the conviction, disputed judgement and the sentencing order has preferred the instant appeal to this Court.

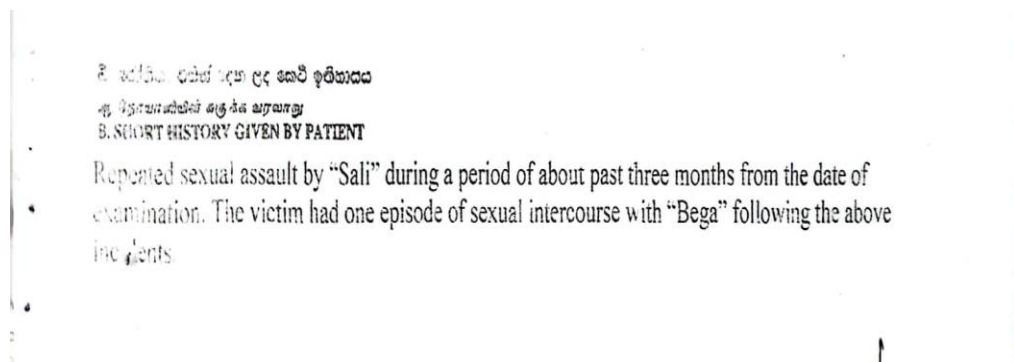
Case of the Prosecution

4. At the time the incident referred to in the charge occurred, PW01 has been alone in the house where she lived, attending to the garden. Close to noon, she has gone into the house to have lunch and has walked towards the fridge to fetch some milk. At that moment, she has seen the appellant, in the room she slept in the house. The appellant has first questioned PW01 about the whereabouts of the other household members, and also when they were expected back. Thereafter, the appellant has proceeded to undress PW01 as described, undressed himself, and sexually abused PW01 in the room where he was.
5. Following the submission of a complaint, investigations into the incident have commenced. PW01 presented for a medical examination which has been conducted by PW11, *Dr. N.A.S.P. Wijeratne*, an additional Judicial Medical Officer. The resulting medico-legal report has been produced as evidence marked *ex 05*.

Case of the Appellant

6. The appellant has maintained that a dispute arose between him and the members of PW01's household over a sum of Rs. 5000.00, which he had borrowed and failed to return, and such dispute escalated to a quarrel.

7. One of the fundamental objectives of cross-examination is to test the accuracy of a witness's testimony. This is achieved through strategic questioning designed to expose contradictions or weaknesses in the testimony. By eliciting clarifications or alternative narratives, the cross-examiner seeks to highlight any potential distortions in the witness's account, thereby undermining its overall reliability.
8. Furthermore, cross-examination serves to reveal any biases or motives that may influence a witness's testimony. A witness may have personal relationships or other incentives that colour their perspectives. Through pointed questioning, a cross-examiner could illuminate these factors, allowing a judge to assess the witness's motivation and the weight to be given to their testimony. Additionally, cross-examination plays a significant role in shaping the narrative of the trial. By effectively challenging a witness, the cross examiner can create doubt regarding the opposing party's case.
9. PW01 in her short history to *Dr. Wijeratne* has stated as follows;



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PW01 has stated that she experienced repeated sexual assault by *Sali* during the three months leading up to the medical examination. Additionally, she has reported an incident of sexual intercourse by *Bega* subsequently. Her narrative thus refers to two distinct individuals and details sexual abuse committed by each.

10. In these circumstances, it would be quite fair and crucial for the counsel representing the appellant to cross examine PW01 thoroughly. This questioning should focus on the individual's named in her account and their precise involvement in the alleged incidents. This process is essential because it offers a direct opportunity to uncover any contradictions with other evidence or statements, explore alternative versions of events that might have been overlooked, or highlight potential distortions within a narrative, which could stem from bias or misinterpretation. Successfully doing so would challenge the overall reliability of PW01's testimony by introducing reasonable doubt about its accuracy and completeness.

11. Despite the significant background information presented in the narrative of PW01, the counsel for the appellant has unfortunately been prevented from exploring these crucial matters during the cross-examination.

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අධිකරණයෙන්

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12. This restriction has denied the appellant's counsel a fundamental opportunity to pose lawful and highly relevant questions, which were truly vital to establish the appellant's defence. Consequently, this flaw has amounted to a denial of fair trial a situation directly stemming from a misdirection by the learned High Court Judge. Notably, the learned Additional Solicitor General, appearing on behalf of the respondent upholding the highest traditions, has conceded to this fact.

13. In such circumstances, I set aside the conviction, disputed judgement, together with the sentencing order and I order a retrial.

14. The learned High Court Judge in Nuwara Eliya is required expedite the matter.

15. I make no order regarding costs.

Retrial ordered.

16. The Registrar of this Court is directed to send this Judgement to the High Court in Nuwara Eliya for compliance.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal